

Ravi Upadhyay v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 January 2017 · Writ-C No. 61628 of 2016 · **Writ disposed of; petitioner relegated to clause 6.5 for remaining bill dispute.**

HEADNOTE

After a representation quantifying electricity dues was decided, the High Court declined to examine a remaining dispute over connection bills on a writ and left the consumer to the objection remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner had earlier filed Criminal Misc. Writ Petition No. 19753 of 2016 to quash an FIR under Section 138(b) of the Indian Electricity (Amendment) Act, 2003 at Police Station Phoolpur, Varanasi. That petition was disposed of on 7 September 2016 with a direction to pursue a representation on disputed bills and limited protection against arrest. The representation was decided on 27 October 2016, holding Rs.2,10,335 due up to September 2016. The petitioner said he had deposited Rs.5,54,876 against Rs.6,62,327, and still disputed the connection bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A remaining dispute over connection bills after the representation-order is not to be decided on a writ; the consumer must invoke the remedy under clause 6.5 of the Electricity Supply Code, 2005. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE REMAINING CONNECTION-BILL DISPUTE AFTER THE 27 OCTOBER 2016 REPRESENTATION-ORDER

Left to the objection remedy under clause 6.5 of the Supply Code, 2005. ¶ 4-5